

25AVCV00734 25AVCV00734

County: los-angeles

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Case Number: 25AVCV00734 Hearing Date: July 7, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

LAKESHIA SMITH-HARRELL,

Plaintiff,

v.

GABRIEL RODRIGUEZ; MANOLA RODRIGUEZ,

Defendants.

Case Number 25AVCV00734

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: July 7, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a wrongful eviction case, arising from the Defendants Gabriel Rodriguez and Manola Rodriguez's (together Defendants) purported eviction of Plaintiff Lakeshia Smith-Harrell (Plaintiff).

On June 11, 2025, Plaintiff filed her complaint against Defendants, asserting causes of action for wrongful eviction, breach of contract, and fraud.

Plaintiff allegedly occupied residential property owned or controlled by Defendants and received housing assistance from the Los Angeles County Developmental Authority (LACDA) throughout her tenancy. (Motion, p. 4:5-8.) Plaintiff alleges she paid her rent to Gabriel Rodriguez, and Manola Rodriguez was acting as his agent. (Compl., p. 5:11-14.) In September of 2023, LACDA issued correspondence indicating an increase in rent. (Motion, p. 4:11-13.) In October 2023, Defendants filed an unlawful detainer action against Plaintiff, who did not respond. (Motion, p. 4:22-23.) Default judgment was entered against Plaintiff in the unlawful detainer action on March 20, 2024. (Request for Judicial Notice, Ex. 1.) Plaintiff purportedly filed the instant action after Defendants' counsel located Plaintiff's place of employment and attempted wage garnishment to satisfy the unlawful detainer judgment. (Motion, p. 5:1-2; Compl., p. 4:23-25.)

On July 30, 2025, Defendants filed their general denial.

On May 12, 2026, Defendants filed their motion for judgment on the pleadings.

On May 26, 2026, Plaintiff filed her opposition.

No reply has been filed.

II. Preliminary Procedural Issues

Meet and Confer Requirement – Before filing a motion for judgment on the pleadings, the moving party is required to meet and confer at least five days before the date the motion is filed in person, by telephone, or by video conference with the party who filed the pleading subject to the motion for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the motion. (Code Civ. Proc., § 439, subd. (a).) The moving party shall file and serve with the motion a declaration stating the means by which the parties met and conferred and that the parties did not reach an agreement to resolve the issues raised, or that the party who filed the pleading failed to respond or otherwise failed to meet and confer in good faith. (Ibid.)

Here, Defendants have not put forth any declaration or statement indicating any attempt to meet and confer was made. Thus, the Court finds the meet and confer requirement has not been satisfied.

However, a determination that the meet and confer process was not sufficient is not grounds to deny a motion for judgment on the pleadings. (Code Civ. Proc., § 439, subd. (a)(4).) Accordingly, the Court will consider the motion on the merits notwithstanding Defendants' noncompliance.

III. Request for Judicial Notice

Defendants' Request for Judicial Notice – Defendants request the Court take judicial notice of a Default Judgment for Unlawful Detainer, filed on March 20, 2024 in Case No. 23AVUD01503.

California Evidence Code section 452 permits judicial notice being taken of the records of any court in California. (Evid. Code, § 452, subd. (d).) California Evidence Code section 453 mandates a court take judicial notice of a matter specified in section 452 if a party so requests, gives the adverse party sufficient notice through pleadings or otherwise, and furnishes the court with sufficient information to enable it to take judicial notice. (Evid. Code, § 453, subd. (a), (b).)

The Court finds that the judgment is a record of the California Superior Court, County of Los Angeles, has been sufficiently identified and provided by Defendants, and was served along with the request on Plaintiff on May 12, 2026, providing sufficient notice through the moving papers.

Accordingly, Defendants' Request for Judicial Notice is GRANTED.

IV. Legal Standard

Standard for Motion for Judgment on the Pleadings – A defendant may move for judgment on the pleadings where “[t]he complaint does not state facts sufficient to constitute a cause of action against that defendant.” (Code Civ. Proc., § 438(c)(1)(B)(ii).) “A motion for judgment on the pleadings may be made at any time either prior to the trial or at the trial itself. [Citation.]” (Ion Equipment Corp. v. Nelson (1980) 110 Cal.App.3d 868, 877 (disapproved on other grounds).)

“A motion for judgment on the pleadings performs the same function as a general demurrer, and hence attacks only defects disclosed on the face of the pleadings or by matters that can be judicially noticed. Presentation of extrinsic evidence is therefore not proper on a motion for judgment on the pleadings.” (Cloud v. Northrop Grumman Corp. (1998) 67 Cal.App.4th 995, 999 (citations omitted).) “The standard for ruling on a motion for judgment on the pleadings is essentially the same as that applicable to a general demurrer, that is, under the state of the pleadings, together with matters that may be judicially noticed, it appears that a party is entitled to judgment as a matter of law.” (Bezirdjian v. O'Reilly (2010) 183 Cal.App.4th 316, 321–322 (citing Schabarum v. California Legislature (1998) 60 Cal.App.4th 1205, 1216).)

“If a pleading is defective but amendable, judgment on the pleadings should be granted but with leave to amend.” (Olsen v. Lockheed Aircraft Corp. (1965) 237 Cal.App.2d 737, 742.)

V. Discussion

Application – Defendants move for judgment on the pleadings as to the entire complaint on the grounds that Plaintiff's complaint fails to state causes of action for which relief may be granted and fails to state facts sufficient to constitute a cause of action. (Notice of Motion, p. 2:1-6.)

A motion for judgment on the pleadings may only be made by a defendant on one of two grounds: (1) the court has no jurisdiction of the subject of the cause of action alleged in the complaint, or (2) the complaint does not state facts sufficient to constitute a cause of action against that defendant. (Code Civ. Proc., § 438. Subd. (c)(1)(B).)

Defendants move on the ground that the complaint fails to allege facts sufficient to constitute a cause of action.

The Court notes as a preliminary matter that Plaintiff's opposition includes a significantly more detailed narrative of the circumstances giving rise to her complaint and the causes of action included. However, on a motion for judgment on the pleadings, the Court is bound to analyze only the content of the complaint itself and judicially noticeable documents. Accordingly, while the Court acknowledges Plaintiff's offer of further information, the Court does not consider this information nor the evidence supplied in ruling on this motion.

a. First Cause of Action – Wrongful Eviction

An action for wrongful eviction is in reality an action for malicious prosecution. (See *Asell v. Rodrigues* (1973) 32 Cal.App.3d 817, 823 n.3.) “To establish a cause of action for the malicious prosecution of a civil proceeding, a plaintiff must plead and prove that the prior action (1) was commenced by or at the direction of the defendant and was pursued to a legal termination in his, plaintiff's, favor [citations]; (2) was brought without probable cause [citations]; and (3) was initiated with malice [citations].” (*Lanz v. Goldstone* (2015) 243 Cal.App.4th 441, 458 (citing *Bertero v. National General Corp.* (1974) 13 Cal.3d 43, 50).)

Here, the Court notes that judgment has been entered against Plaintiff and in favor of Defendants in a separate unlawful detainer action. (Request for Judicial Notice, Ex. 1.) Taking the allegations of the Complaint as true, and considering the unlawful detainer judgment, the Court finds that Plaintiff has not asserted facts sufficient to constitute a cause of action for wrongful eviction.

The Court notes that generally, Plaintiff's complaint is unintelligible as to the factual assertions, dates, parties, timeline, and claims giving rise to the causes of action within. However, the complaint states, in relevant part, that an individual named Ms. Shanetta Williams assisted her in meeting with Defendants, that Williams liked the property, so Plaintiff agreed, Plaintiff regularly sent payment of rent through Zelle, that on August 2, 2023 Defendants informed her that they needed the condo back for their family member's use and Plaintiff needed to move out, and Manola used a clause in her contract with HUD to obtain a no fault eviction and a “bogus judgment.” (Compl., p. 1-2, 5:4-7.) These facts are not sufficient to constitute a wrongful eviction cause of action.

While the allegations in the complaint indicate that Defendants, specifically Manola Rodriguez, commenced the unlawful detainer action and eviction of Plaintiff, resulting in a “bogus” legal judgment in Defendants' favor, the Complaint does not allege facts sufficient to show that the unlawful detainer action was brought without probable cause or was initiated with malice. The complaint also does not state any facts indicating the date of the eviction, the manner of the eviction, whether the eviction was pursuant to unlawful self-help or through the judicially proper unlawful detainer procedure, whether Plaintiff was in lawful possession of the premises at the time of the eviction, or that Defendants unlawfully interfered with her right to possession.

Thus, the Court finds Plaintiff has failed to state facts sufficient to constitute a cause of action for wrongful eviction.

b. Second Cause of Action – Breach of Contract

The elements of a cause of action for breach of contract are: (1) the existence of a contract; (2) the plaintiff's performance or excuse for nonperformance; (3) the defendant's breach; and (4) damages resulting to the plaintiff. (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.)

The Court finds that Plaintiff's complaint fails to state a cause of action for breach of contract. The complaint does not state that Plaintiff and Defendants entered into a valid, legally enforceable contract, or who the parties to the contract were.

The complaint also does not state facts sufficient to establish Plaintiff's performance or excuse for nonperformance under a contract. The complaint alleges that Plaintiff typically paid rent via Zelle payments to Manola Rodriguez, claims that LACDA

told Plaintiff to stop paying, presents a factual background of financial and other hardships she faced during this time, and claims she informed Manola Rodriguez that she was told to stop paying. (Compl., p. 2:9-14.) However, these facts alone, even taken as true, are not sufficient to establish that Plaintiff performed her obligations under a contract or was otherwise excused from performing. The complaint does not state what Plaintiff's obligations under the Agreement were or otherwise provide any terms of a contract which establish or excuse Plaintiff's performance.

Plaintiff's complaint further fails to establish facts sufficient to establish that Defendants breached a contract. As discussed, no terms of any contract have been set forth in the complaint, and as such, based on the factual allegations presented, the Court cannot find that Defendants were in breach. No facts allege what term was breached, when the breach occurred, or how the breach occurred. The complaint is, in this regard, conclusory in nature and cannot withstand a motion for judgment on the pleadings.

c. Third Cause of Action – Fraud

"The essential elements of fraud, generally are (1) a misrepresentation; (2) knowledge of falsity; (3) intent to induce reliance; (4) justifiable reliance; and (5) resulting damage." (City of Industry v. City of Fillmore (2011) 198 Ca.App.4th 191, 211.) Fraud must be specifically pleaded. (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.) "This particularity requirement necessitates pleading facts which 'show how, when, where, to whom, and by what means the representations were tendered.'" (Id. at 645 (citations omitted).)

The Court finds that the complaint fails to state a cause of action for fraud. The Complaint alleges that "Manola made me feel like she wanted a long term tenant." (Compl., 5:1-2.) However, this alone is not sufficient to establish a misrepresentation giving rise to a legal cause of action. Plaintiff's complaint does not sufficiently plead that there was a misrepresentation, the nature of the misrepresentation, who made it, or when it was made. The complaint also fails to allege facts sufficient to establish a knowledge of falsity, intent to induce Plaintiff's reliance, or Plaintiff's justifiable reliance.

Accordingly, Defendants' motion for judgment on the pleadings is GRANTED.

Because the Court cannot determine that it is impossible for Plaintiff to plead a viable cause of action, the Court will grant Plaintiff leave to amend the complaint to assert facts sufficient to constitute a cause of action.

VI. Conclusion

Defendants Gabriel Rodriguez and Manola Rodriguez's Motion for Judgment on the Pleadings is GRANTED WITH LEAVE TO AMEND.

Plaintiff is to file an amended complaint within 30 days of this Order.